

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X

LAKITA PIZARRO,

Plaintiff,

-against-

SUMMONS

THE CITY OF NEW YORK, POLICE OFFICER
CHRISTOPHER HANSEN, Shield No. 3887, POLICE
OFFICER BRIAN DOHERTY, Shield No. 12054,
POLICE OFFICE JAMES LINDQUIST, Shield No. 6307,
POLICE OFFICER THOMAS O'CONNELL, Shield No.
17612, POLICE OFFICER EDGAR RIVERA, Shield No.
5576, POLICE OFFICER JOHN TELESKA, Shield No.
22444, and POLICE OFFICERS JOHN DOES #1-4 (names
and numbers of whom are unknown at present), and other
unidentified members of the New York City Police
Department,

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Bronx
County as the place of trial.

Defendants.

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To the above named Defendants:

You are hereby summoned to answer the amended complaint in this action, and to serve a copy of your answer, or, if the amended complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
July 2, 2019

Yours, etc.

/s/

JACOBS & HAZAN, LLP.
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER CHRISTOPHER HANSEN, Shield No. 3887, 52nd Precinct, 3016 Webster Avenue, Bronx, New York 718220-5811
POLICE OFFICER BRIAN DOHERTY, Shield No. 12054, 52nd Precinct, 3016 Webster Avenue, Bronx, New York 718220-5811
POLICE OFFICE JAMES LINDQUIST, Shield No. 6307, 52nd Precinct, 3016 Webster Avenue, Bronx, New York 718220-5811
POLICE OFFICER THOMAS O'CONNELL, Shield No. 17612
POLICE OFFICER EDGAR RIVERA, Shield No. 5576, 52nd Precinct, 3016 Webster Avenue, Bronx, New York 718220-5811
POLICE OFFICER JOHN TELESKA, Shield No. 22444, 52nd Precinct, 3016 Webster Avenue, Bronx, New York 718220-5811

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

LAKITA PIZARRO,

Plaintiff,

-against-

INDEX NO.:**VERIFIED COMPLAINT**

THE CITY OF NEW YORK, POLICE OFFICER
CHRISTOPHER HANSEN, Shield No. 3887, POLICE
OFFICER BRIAN DOHERTY, Shield No. 12054,
POLICE OFFICER JAMES LINDQUIST, Shield No. 6307,
POLICE OFFICER THOMAS O'CONNELL, Shield No.
17612, POLICE OFFICER EDGAR RIVERA, Shield No.
5576, POLICE OFFICER JOHN TELESCA, Shield No.
22444, and POLICE OFFICERS JOHN DOES #1-4 (names
and numbers of whom are unknown at present), and other
unidentified members of the New York City Police
Department,

JURY TRIAL DEMANDED

Defendants.

Plaintiff LAKITA PIZARRO, by her attorneys, Jacobs & Hazan, LLP, as and for her
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violations of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On June 30, 2017, at approximately 11:30 pm, plaintiff Lakita Pizarro was lawfully present on the sidewalk in front of her apartment building located at 2917 Grand Concourse, Bronx, New York at which time defendants unlawfully stopped, questioned, frisked, searched, seized and falsely arrested/ imprisoned plaintiff without probable cause, reasonable suspicion or any legal justification. Thereafter, defendants unlawfully entered and searched plaintiff's apartment, without probable cause, without a warrant or any legal justification to enter or search the apartment. The defendants unlawfully handcuffed plaintiff and transported her to the 52nd Precinct against her will. Plaintiff was maliciously prosecuted by the defendant police officers. Further, the defendant police officers abused process and denied plaintiff the right to due process/ right to a fair trial. The defendants interrogated plaintiff about where they could locate her brother and also pressured her to provide them with information about crimes her brother committed.

Plaintiff's brother was known to the defendant police officers as someone involved in the sale of narcotics and the defendants arrested plaintiff in order to pressure her to provide them with information about her brother, not because they had probable cause to believe she committed a crime. The defendants informed plaintiff that they would release her if she provided them with the information they were requesting about her brother, but plaintiff could not provide them with the information they wanted. Therefore, defendants charged plaintiff with crimes she did not commit and for which the defendants lacked probable cause to accuse her of committing. The defendants provided the Bronx County District Attorney's Office with false, misleading, and incomplete information and evidence in order to justify arresting plaintiff and charging her with crimes. Defendants maliciously prosecuted plaintiff and denied plaintiff the right to due process/right to a fair trial and plaintiff was arraigned in Bronx County Criminal Court on July 1, 2017 at approximately 11:30 pm. Plaintiff was released on her own recognizance at arraignment. On September 28, 2017 the Bronx District Attorney's Office affirmatively moved to dismiss the felony charges pending against plaintiff and the felony charges were dismissed in their entirety pursuant to the motion to dismiss made by the District Attorney's Office. Plaintiff was required to return to Bronx Criminal Court on 7 occasions and to endure a criminal prosecution that lasted for almost an entire year before the remaining criminal charges pending against her were dismissed and sealed in their entirety on April 4, 2018. Plaintiff was fired from three jobs because of the false arrest and criminal prosecution initiated by the defendants against her which caused her to lose more than \$50,168.63 in income. Plaintiff was deprived of her constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched plaintiff, entered and searched plaintiff's home, subjected plaintiff to the abuse of process, maliciously prosecuted plaintiff, and denied plaintiff the right to due process/right to a fair trial in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff LAKITA PIZARRO is a resident of the state of New York.
3. Defendant POLICE OFFICER CHRISTOPHER HANSEN, Shield No. 3887, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
4. Defendant POLICE OFFICER CHRISTOPHER HANSEN, Shield No. 3887, is and was at all times relevant herein, assigned to the 52nd Precinct.
5. Defendant POLICE OFFICER CHRISTOPHER HANSEN, Shield No. 3887, is being sued in his individual and official capacity.
6. Defendant POLICE OFFICER BRIAN DOHERTY, Shield No. 12054, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
7. Defendant POLICE OFFICER BRIAN DOHERTY, Shield No. 12054, is and was at all times relevant herein, assigned to the 52nd Precinct.

8. Defendant POLICE OFFICER BRIAN DOHERTY, Shield No. 12054, is being sued in his individual and official capacity.

9. Defendant POLICE OFFICE JAMES LINDQUIST, Shield No. 6307, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. Defendant POLICE OFFICE JAMES LINDQUIST, Shield No. 6307, is and was at all times relevant herein, assigned to the 52nd Precinct.

11. Defendant POLICE OFFICE JAMES LINDQUIST, Shield No. 6307, is being sued in his individual and official capacity.

12. Defendant POLICE OFFICER THOMAS O'CONNELL, Shield No. 17612, was at all times relevant herein, an officer, employee, and agent of the New York City Police Department, but upon information and belief he is no longer an active police officer employed by the NYPD.

13. Defendant POLICE OFFICER THOMAS O'CONNELL, Shield No. 17612, was at all times relevant herein, assigned to the 52nd Precinct.

14. Defendant POLICE OFFICER THOMAS O'CONNELL, Shield No. 17612, is being sued in his individual and official capacity.

15. Defendant POLICE OFFICER EDGAR RIVERA, Shield No. 5576, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

16. Defendant POLICE OFFICER EDGAR RIVERA, Shield No. 5576, is and was at all times relevant herein, assigned to the 52nd Precinct.

17. Defendant POLICE OFFICER EDGAR RIVERA, Shield No. 5576, is being sued in his individual and official capacity.

18. Defendant POLICE OFFICER JOHN TELESKA, Shield No. 22444, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

19. Defendant POLICE OFFICER JOHN TELESKA, Shield No. 22444, is and was at all times relevant herein, assigned to the 52nd Precinct.

20. Defendant POLICE OFFICER JOHN TELESKA, Shield No. 22444, is being sued in his individual and official capacity

21. Defendants NEW YORK CITY POLICE OFFICERS JOHN DOES #1-4 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

22. Defendants NEW YORK CITY POLICE OFFICERS JOHN DOES #1-4 are being sued in their individual and official capacities.

23. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

24. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

25. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a Notice of Claims against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50 and a hearing pursuant to General Municipal Law Section 50-h was conducted by defendant City of New York on August 22, 2018.

26. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

27. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

28. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

29. On June 30, 2017, at approximately 11:30 pm, plaintiff Lakita Pizarro was lawfully present on the sidewalk in front of her apartment building located at 2917 Grand Concourse, Bronx, New York at which time defendants unlawfully stopped, questioned, frisked, searched, seized and falsely arrested/ imprisoned plaintiff without probable cause, reasonable suspicion or any legal justification.

30. At no time prior to stopping plaintiff did the defendant police officers have any objective factual basis to believe plaintiff had committed a crime, was about to commit a crime, or was in the process of committing a crime.

31. At no time relevant herein did plaintiff commit a crime, nor did the defendant police officers have an objective factual basis to believe she committed a crime.

32. At no time relevant herein was plaintiff in possession of any drugs, weapons, or contraband of any kind, nor did the defendant police officers have an objective reason to believe plaintiff possessed drugs, weapons, or contraband of any kind.

33. Nevertheless, the defendant police officers unlawfully handcuffed plaintiff and falsely arrested her without legal justification or probable cause.

34. Thereafter, defendants unlawfully entered and searched plaintiff's apartment, without probable cause, without a warrant or any legal justification to enter and/ or search the apartment.

35. The defendants unlawfully handcuffed plaintiff and transported her to the 52nd Precinct against her will.

36. Upon information and belief, defendants arrested plaintiff for the sole purpose of pressuring plaintiff to provide the defendants with information about her brother and not because the officers had probable cause to arrest plaintiff for committing a crime.

37. Plaintiff was maliciously prosecuted by the defendant police officers.

38. Further, the defendant police officers subjected plaintiff to the abuse of process and denied plaintiff the right to due process/ right to a fair trial.

39. The defendants interrogated plaintiff about where they could locate her brother and also pressured her to provide them with information about crimes her brother committed.

40. Plaintiff's brother was known to the defendant police officers as someone involved in the sale of narcotics and the defendants arrested plaintiff in order to pressure her to provide them with information about her brother, not because they had probable cause to believe she committed a crime.

41. The defendants informed plaintiff that they would release her if she provided them with the information they were requesting about her brother, but plaintiff could not provide them with the information they wanted.

42. Therefore, defendants charged plaintiff with crimes she did not commit and for which the defendants lacked probable cause to accuse her of committing.

43. Defendants unlawfully fingerprinted, photographed and detained plaintiff in a filthy holding cell at the 52nd Precinct for many hours.

44. Eventually, the defendants transported plaintiff to Bronx Central Booking whereat plaintiff was detained in several holding cells with other individuals accused of committing crimes and the unlawful detention continued for many hours.

45. The defendants provided the Bronx County District Attorney's Office with false, misleading, and incomplete information and evidence in order to justify arresting plaintiff and charging her with crimes.

46. Defendants maliciously prosecuted plaintiff and denied plaintiff the right to due process/ right to a fair trial and plaintiff was arraigned in Bronx County Criminal Court on July 1, 2017 at approximately 11:30 pm.

47. Based upon the false, misleading and incomplete information and evidence provided to the Bronx District Attorney's Office by the defendants, plaintiff was falsely and maliciously charged with several narcotics related crimes that she did not commit and that the officers lacked any factual basis to accuse her of committing, including but not limited to felony Criminal Possession of a Controlled Substance in the Third Degree (PL 220.16(1)); Criminal Possession of a Controlled Substance in the Fourth Degree (PL 220.09(1)); Criminal Possession of a Controlled Substance in the Seventh Degree (PL 220.03); Criminally Using Drug Paraphernalia (PL 220.50(3)); and Unlawful Possession of Marijuana (PL 221.05).

48. Importantly, the collateral objective the defendants had for ensuring plaintiff was prosecuted was to continue to attempt to pressure plaintiff to provide them with information about plaintiff's brother whom defendants suspected was involved in illegal narcotics trafficking.

49. Based upon the false, misleading, and incomplete information provided to the District Attorney's Office by the defendant police officers and sworn to by the defendants in the criminal court complaint, defendants initiated a prosecution against plaintiff on July 1, 2017, and legal process against plaintiff was commenced when plaintiff was arraigned in Bronx Criminal Court and was falsely charged with several crimes.

50. Plaintiff was released on her own recognizance at arraignment.

51. On September 28, 2017 the Bronx District Attorney's Office affirmatively moved to dismiss the felony charges pending against plaintiff and the felony charges terminated in plaintiff's favor and were dismissed in their entirety pursuant to the motion to dismiss made by the District Attorney's Office.

52. Plaintiff was required to return to Bronx Criminal Court on 7 occasions and to endure a criminal prosecution that lasted for almost an entire year before the remaining criminal charges pending against her were dismissed and sealed in their entirety on April 4, 2018.

53. Plaintiff was fired from three jobs as a direct and proximate cause of the false arrest and malicious prosecution initiated by the defendants against her which caused her to lose more than \$50,168.63 in income.

54. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, search, false arrest, false imprisonment, malicious prosecution, abuse of process, and denial of fair trial and are liable to plaintiff for their failure to intervene.

55. The unlawful stop, question, frisk, search, false arrest, false imprisonment, malicious prosecution, abuse of process, and denial of due process/ right to a fair trial, against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, and Fourteenth Amendment Rights

56. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 55 with the same force and effect as if more fully set forth at length herein.

57. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, seized, unlawfully searched, falsely arrested, falsely imprisoned, maliciously prosecuted, subjected to abuse of process and denied the right to due process/ right to a fair trial without probable cause in violation of plaintiff's right to be free of an unreasonable seizure and denial of due process under the Fourth and Fifth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

58. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

59. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 58 with the same force and effect as if more fully set forth at length herein.

60. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

61. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

62. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

63. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

64. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

65. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 64 with the same force and effect as if more fully set forth at length herein.

66. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

67. The conduct of defendants in stopping, frisking, and searching, plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

68. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

69. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

70. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

71. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

72. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 71 with the same force and effect as if more fully set forth at length herein.

73. The illegal approach, pursuit, stop and search inside plaintiff's pockets, inside of the waistband of her pants and underneath her clothing employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

74. Defendants lacked probable cause to search plaintiff.

75. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

76. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

77. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

78. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Malicious Prosecution

79. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 78 with the same force and effect as if more fully set forth at length herein.

80. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

81. Defendants commenced and continued a criminal proceeding against plaintiff.

82. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

83. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned dates.

84. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

85. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

86. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SIXTH CAUSE OF ACTION

Denial of Right to Fair Trial

87. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 86 with the same force and effect as if fully set forth herein.

88. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Bronx County District Attorney's Office.

89. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Bronx County District Attorney's Office.

90. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Bronx County District Attorney's Office.

91. In withholding/creating false evidence against plaintiff, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

92. As a result of the foregoing, plaintiff, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

93. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

94. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SEVENTH CAUSE OF ACTION

Malicious Abuse of Process

95. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 94 with the same force and effect as if fully set forth herein.

96. Defendants issued legal process to place plaintiff under arrest and to initiate a criminal prosecution against her.

97. Defendants arrested and prosecuted plaintiff in order to obtain a collateral objective outside the legitimate ends of the legal process.

98. Defendants acted with intent to do harm to plaintiff, without excuse or justification.

99. As a result of the foregoing, plaintiff sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

100. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

101. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

EIGHTH CAUSE OF ACTION

Failure to Intervene

102. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 102 with the same force and effect as if more fully set forth at length herein.

103. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

104. Defendants failed to intervene to prevent the unlawful conduct described herein.

105. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of her safety, and he was humiliated and subject to other physical constraints.

106. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

107. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

NINTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

108. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 107 with the same force and effect as if more fully set forth at length herein.

109. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

TENTH CAUSE OF ACTION

Negligence

110. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 109 with the same force and effect as if more fully set forth at length herein.

111. Defendants owed a duty of care to plaintiff.

112. Defendants breached that duty of care by unlawfully stopping, questioning, frisking, falsely arresting, illegally searching, maliciously prosecuting, and denying plaintiff the right to due process.

113. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

114. All of the foregoing occurred without any fault or provocation by plaintiff.

115. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

ELEVENTH CAUSE OF ACTION**Negligent Infliction of Emotional Distress**

116. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 115 with the same force and effect as if more fully set forth at length herein.

117. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

118. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

119. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

JURY DEMAND

120. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Lakita Pizarro demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
July 2, 2019

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
July 2, 2019

/s/

DAVID M. HAZAN